

Tentative Rulings for August 28, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404496	E.I.M. & T. SUPERIOR DATA RESOURCES MANAGEMENT COMPANY LLC vs TINA	MOTION TO CONSOLIDATE

Tentative Ruling:

DENY

While there is commonality of issues, parties and claims in both actions, the existence of a premises liability personal injury claim in the Tina Cross-Complaint renders consolidation impracticable. The cases will instead be designated as related actions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406213	CHINCHILLA vs LEMIEUX	MOTION TO VACATE (DISMISSAL 02-26-26)

Tentative Ruling:

GRANT

The Dismissal of February 23, 2026 is set aside. Matter is returned to the civil active list.

The Court sets an Order to Show Cause Re: Why the action should not be dismissed for failure to file proof of service of the Complaint on the Defendant pursuant to CRC 3.110(b & f), to be heard on October 29, 2026, at 8:30am in Department 4.